

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: August 31, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Johnson v. MP Trinity LLC 2026-01568110 Demurrer to Complaint	Defendant MP Trinity LLC's demurrer to Plaintiff Scott Johnson's Verified Complaint is CONTINUED to October 12, 2026, at 1:45 p.m. The Court also continues the CMC set for 8:30 a.m. on October 12, 2026, to 1:45 p.m. on October 12, 2026. "[T]rial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort." (<i>Dumas v. Los Angeles County Bd. of Supervisors</i> (2020) 45 Cal.App.5th 348, 355, fn. 3.) Defendant failed to properly meet and confer prior to filing the demurrer. In response to Defendant's letter, Plaintiff's counsel invited Defendant to meet and confer: "I am available in the early afternoon this Friday or next Monday through Wednesday to meet and confer. Please provide
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		the authority you intend to rely on ahead of time so that I have a chance to review it and so that a proper conference may take place..." (Sari Decl., ¶ 8, Ex. B.) Defendant did not engage in this effort, opting instead to rely upon a form letter as its meet and confer. The Court ORDERS the parties to meaningfully meet and confer in person or by telephone concerning the issues raised in the demurrer with an eye toward reducing the number of issues or eliminating the need for a demurrer. Defendant is to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off calendar. Moving Defendant to give notice.
2	Madani v. 2900 & 2910 E. Miraloma Ave. LLC 2025-01482955 Demurrer to Cross Complaint	Defendant/cross-defendant 2900 & 2910 E. Miraloma Avenue LLC's (Miraloma) Demurrer to Defendant/cross-defendant/cross-complainant Jones Roofing, Inc. (Jones Roofing) Cross-complaint is OVERRULED as MOOT. Fifth cause of action for express indemnity "Express contractual indemnity involves the agreement between two parties that one will indemnify the other in certain circumstances specified in the contract of indemnity." (<i>Irm Corp. v. Carlson</i> (1986) 179 Cal.App.3d 94, 109 [citation omitted].) Miraloma demurs on the ground the cross-complaint fails to allege the existence of a contract that contains a contractual indemnity provision. In opposition, Jones Roofing states the fifth cause of action for express indemnity is against Moes 25-50 only and Miraloma has been identified as Moe 1. As such, Jones Roofing contends the demurrer should be considered moot because it is not at issue in the cross-complaint against Miraloma. Jones Roofing further contends counsel has met and conferred with counsel and agreed that express indemnity is not a cause of action against Miraloma. Given the above, the Court OVERRULES the demurrer as MOOT. The Court ORDERS Miraloma to file an answer within 10 days.